

LEXINGTON INSURANCE COMPANY et al. v. DRESSER-RAND CO. et al.
Case No. CU25-03193

Application of C. Scott Toomey to Appear Pro Hac Vice

TENTATIVE RULING:

The unopposed application of C. Scott Toomey to appear pro hac vice as counsel for SIEMENS ENERGY, INC. is **GRANTED**. The lodged order shall be processed forthwith.

KAINOA RUBIN on behalf of himself and all others similarly situated v. WB WAREHOUSING & LOGISTICS, INC., ET AL.
Case No. CU24-04761

Motion for Final Approval of Class Action and PAGA Settlement.

TENTATIVE RULING:

Parties to appear.

This matter was reassigned to Department 8 after the motion for preliminary approval of the class action settlement was granted by Department 10 on October 21, 2025.

Plaintiff KAINOA RUBIN moves for final approval of the settlement reached with Defendant WB WAREHOUSING & LOGISTICS. The settlement concerns a class action involving alleged wage and hour violations, unreimbursed business expenses and violation of Business and Professions Code sections 17200 et seq. It also involves PAGA penalties.

The court has not received opposition to the motion.

In a class action the court has broad discretion to determine whether a settlement was fair and reasonable. (*Cellphone Termination Fee Cases* (2010) 186 Cal.App.4th 1380, 1389.) In reviewing the fairness of a settlement due regard must be given to what is otherwise a private, consensual agreement between parties. (*Ibid.*) Review for fairness is limited to the extent necessary to reach a reasoned judgment that the agreement is not the product of fraud, overreaching, or collusion and that the settlement as a whole is fair and reasonable to all concerned. (*Ibid.*) Considering reasonableness means weighing factors such as the strength of the plaintiffs' case, the risk and expense of further litigation, the amount of settlement, the risk of maintaining class action status through trial, the experience of counsel, the presence of a governmental participant, and class members' opinions of the settlement. (*Ibid.*) Fairness is presumed where a settlement is the product of arm's-length negotiation conducted after sufficient investigation and discovery to allow intelligent decisions, counsel is experienced in similar litigation, and the percentage of objectors is small. (*Ibid.*)